

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

TARIQ CHARLES,

Plaintiff,

-against-

CITY OF NEW YORK; STEVEN MINSTER;
and JOHN and JANE DOE 1-10,

Defendants.

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

The nature of this action is, *inter alia*, assault and battery, false arrest, malicious prosecution, fabrication of evidence and personal injuries sustained as a result of the defendants' negligence, recklessness and intentional conduct. The relief sought is monetary damages.

Dated: October 31, 2023
 Briarcliff Manor, New York

ELEFTERAKIS, ELEFTERAKIS & PANEK



BY: Gabriel P. Harvis, Esq.

Attorneys for Plaintiff

80 Pine Street, 38th Floor

New York, New York 10005

(212) 532-1116

Failure to respond will result in a judgment against you by default and interest from August 3, 2022.

Defendants:

CITY OF NEW YORK

100 Church Street

New York, New York

STEVEN MINSTER

TAX ID# 969228

NYPD 69th Precinct

9720 Foster Avenue

Brooklyn, NY 11236-2123

SUPREME COURT OF THE STATE OF NEW YORK
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CITY OF NEW YORK; STEVEN MINSTER;
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Defendants.

VERIFIED COMPLAINT

Index No.:

Date Filed:

Plaintiff Tariq Charles, by his attorneys, ELEFTERAKIS, ELEFTERAKIS & PANEK, as and for this Verified Complaint, respectfully alleges, upon information and belief:

JURISDICTION AND VENUE

1. One or more of the exceptions of § 1602 of the Civil Practice Law and Rules apply to this action.

2. This action is brought pursuant to the laws of the City and State of New York and the United States Constitution.

3. Jurisdiction is conferred by the laws of the State of New York.

4. Within ninety (90) days after the claim arose, plaintiff served, presented, and duly filed a Notice of Claim, in writing, upon defendants in accordance with General Municipal Law 50-e, and which set forth the following:

- a. The nature of the claims;
- b. The time when, place where, and manner in which the claim arose;
and
- c. The items of damages and injuries sustained.

5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claims, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiff's claims.

6. Pursuant to G.M.L. § 50-h, the City of New York examined plaintiff on January 18, 2023.

7. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

JURY DEMAND

8. Plaintiff demands a trial by jury in this action.

PARTIES

9. Plaintiff Tariq Charles is a resident of the State of New York.

10. Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice,

supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

11. At all times relevant defendant Steven Minster was a police officer involved in the illegal conduct set forth herein that deprived plaintiff of his rights. Defendant Minster is is sued in his individual capacity and as an employee of defendant City.

12. At all times relevant defendants John and Jane Doe 1 through 10 were Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiff of his rights. John and Jane Doe 1-10 are sued in their individual capacities and as employees of defendant City.

13. At all times relevant herein, all individual defendants were acting under color of state law and in the scope of their employment.

STATEMENT OF FACTS

14. On August 3, 2022 at approximately 8:00 p.m. plaintiff was lawfully standing outside in the area of 9320 Avenue L in Brooklyn.

15. Without warning or provocation, a group of NYPD officers, including, upon information and belief, defendant Minster, aggressively approached plaintiff and violently threw him to the ground, assaulted him, and sprayed him with pepper spray.

16. Despite defendants' unlawful conduct, plaintiff did not resist the assault.

17. Defendants handcuffed and falsely arrested plaintiff without reasonable suspicion or arguable probable cause and took him to a police precinct.

18. While plaintiff was held for many hours, defendants prepared and forwarded prosecutors police paperwork containing a false narrative of the events surrounding plaintiff's arrest.

19. Based on defendants' false allegations, plaintiff was held overnight and booked and arraigned on false charges. Plaintiff was eventually released on his own recognizance.

20. Following plaintiff's release, he sought treatment for the physical injuries he sustained when defendants assaulted him. Plaintiff continues to suffer from these injuries.

21. Plaintiff was compelled to return to court on multiple occasions before the false charges against him were adjourned in contemplation of dismissal and dismissed.

22. By reason of the foregoing, plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered, *inter alia*, loss of liberty, pain and suffering, fear, pain, permanent bodily injury, emotional distress, lost wages, damage to his reputation, mental anguish, and anxiety.

FIRST CLAIM
Unlawful Stop and Search

23. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

24. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff without reasonable suspicion.

25. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SECOND CLAIM
Assault and Battery

26. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

27. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.

28. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

29. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

THIRD CLAIM
Excessive Force

30. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

31. By their conduct, as described herein, the defendants are liable to plaintiff for having used unreasonable force against him in violation of the Fourth Amendment.

32. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FOURTH CLAIM
False Arrest

33. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

34. By their conduct, as described herein, the defendants are liable to plaintiff for having arrested plaintiff in the absence of probable cause and in violation of the Fourth Amendment.

35. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FIFTH CLAIM
False Imprisonment

36. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

37. By their conduct, as described herein, the defendants are liable to plaintiff for having arrested plaintiff in the absence of probable cause in violation of New York State law.

38. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SIXTH CLAIM
Fabrication of Evidence

39. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

40. By their conduct, as described herein, the defendants are liable to plaintiff for having fabricated false evidence against plaintiff and forwarding it to prosecutors, in violation of the Fifth, Sixth and Fourteenth Amendments.

41. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SEVENTH CLAIM**Malicious Prosecution under State and Federal Law**

42. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

43. By their conduct, as described herein, the defendants are liable to plaintiff for having maliciously prosecuted plaintiff.

44. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

EIGHTH CLAIM**Negligence; Negligent Hiring/Training/Retention**

45. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

46. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

47. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

48. The individual defendants' conduct, including the manner of pursuit and apprehension of plaintiff, was negligent, grossly negligent, reckless and intentional.

49. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

50. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants and the individual defendants' own negligence proximately caused each of plaintiff's injuries.

51. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

NINTH CLAIM

Negligent or Intentional Infliction of Emotional Distress

52. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

53. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent (or intentional) in committing conduct that inflicted emotional distress upon plaintiff.

54. The negligent (or intentional) infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

55. Defendants, their officers, agents, servants, and employees were responsible for the negligent (or intentional) infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

56. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TENTH CLAIM

Violation of Plaintiff's Administrative Code § 8-802 Rights

57. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

58. The actions of defendants violated plaintiff's rights as defined in Section 8-802 of Chapter 8 of the New York City Administrative Code.

59. As such, immunity is not a defense to the violations of plaintiff's rights and plaintiff demands and is entitled to the relief described in Section 8-805.

60. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CLAIM

Failure to Intervene

61. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

62. Those individual defendants who were present had a reasonable opportunity to intervene and an affirmative obligation to do so but failed to act, rendering them liable to plaintiff.

63. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CLAIM
Punitive Damages & Attorney's Fees

64. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

65. The actions of the individual defendants herein-above alleged, were malicious, willful and grossly negligent.

66. Accordingly, plaintiff is entitled to punitive damages.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment for an amount which exceeds the jurisdictional limits of all other Courts which would otherwise have jurisdiction herein against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;

(c) Reasonable attorneys' fees and costs, and with interest from the date of the incident;

(d) All relief afforded under Section 8-805 of Chapter 8 of the New York City Administrative Code; and

(e) Such other and further relief as this Court deems just and proper.

Dated: October 31, 2023
 Briarcliff Manor, New York

ELEFTERAKIS, ELEFTERAKIS & PANEK



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